

26SMCV01898 26SMCV01898

County: los-angeles

Division: Civil Law and Motion

Department: 207

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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

June 30, 2026

CASE NUMBER

26SMCV01898

MOTION

Motion to Strike Portions of Complaint

MOVING PARTIES

Defendants Erik Chin and Eighteen Cypress, LLC

OPPOSING PARTIES

Plaintiffs Pamela Hieronymi and Mark Johnson

BACKGROUND

This

case arises from a dispute between adjacent neighbors concerning an easement.

On

April 7, 2026, Plaintiffs Pamela Hieronymi and Mark Johnson ("Plaintiffs") brought suit against Defendants Erik Chin ("Chin") and Eighteen Cypress, LLC ("Eighteen Cypress") (together, "Defendants") alleging seven causes of action for (1) breach of contract; (2) breach of contract – specific performance; (3) interference with easement; (4) nuisance; (5) trespass; (6) breach of implied covenant of good faith and fair dealing; and (7) declaratory relief.

On

June 1, 2026, Eighteen Cypress cross-complained against Plaintiffs for (1) interference with easement; (2) declaratory relief; (3) trespass; and (4) nuisance.

Defendants

now move to strike the first, second, and sixth causes of action, allegations about the easement, and the request for attorneys' fees. Plaintiffs oppose the motion and Defendants reply.

MOTION TO STRIKE

Any party, within the time

allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof.

(Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322,

subd. (b).) On a motion to strike, the

court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436,

subd. (a)-(b); *Stafford v. Shultz*

(1954) 42 Cal.2d 767, 782.)

Defendants move to strike Plaintiff's first,

second, and sixth causes of action for breach of contract, breach of implied covenant of good faith and fair dealing, and declaratory relief; the request for attorneys' fees; as well as the following allegations pertaining to the

Easement in question, on the grounds that those causes of action, allegations, and damages are not drawn in conformity with the laws of California because they are premised upon the Easement contract, to which Defendants were not a party, and therefore the contract cannot be enforced as to them:

· “Via paragraph 7

of the Easement, the Parties also agreed to ‘execute such other documents and to take such other actions as may reasonably be necessary to further the purposes of this [Easement] Agreement.’”

(Complaint ¶ 16.)

· “despite the

Easement’s requirement (expressed in paragraph 7 thereto) that the Parties ‘execute such other documents and to take such other actions as may reasonably be necessary to further the purposes of this [Easement] Agreement.’” (Complaint ¶ 31.)

· “Defendants have

also failed to comply with the Easement’s terms by refusing to meet, confer and/or discuss other documents or actions as may reasonably be necessary to further the purposes of the Easement as expressly agreed by the Parties.” (Complaint ¶ 39.)

· “Defendants have

also failed to comply with the Easement’s terms by refusing to meet, confer and/or discuss other documents or actions as may reasonably be necessary to further the purposes of the Easement as expressly agreed by the Parties.” (Complaint ¶ 45.)

The crux of Defendants’ argument is that Plaintiffs and the former owners of Defendants’ property entered into an Amended Easement Agreement. Although that Easement Agreement provides that the easements shall run with the land and benefit/encumber successor owners of the properties (Ex. A to Complaint at p. 5, ¶ 4), Defendants argue the Easement Agreement does not contain express language binding successors to the other terms of the Agreement, notably the attorney fee provision.

But Defendants’ arguments go to the merits of the underlying claims and dispute about the easement, not whether the Complaint was drawn in conformity with the laws of California. For pleading purposes, the Court finds that Plaintiffs’ complaint is adequately pled.

CONCLUSION AND ORDER

For the reasons stated, the Court denies Defendants' motion to strike in its entirety.

Defendants shall file and serve an answer or answers to the Complaint on or before July 14, 2026.

Defendants shall also provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: June 30, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court